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Your sister's marriage of approximately ten years, where she has been subjected to repeated physical assault by her husband. While issues have existed since the beginning of the marriage, the severity and frequency of abuse have significantly escalated over the past four to five years. The situation has also involved financial neglect, with your family bearing major household and child-related expenses, placing both economic and emotional strain on your sister.

The matter reached a critical point following a recent incident of physical violence, including an assault that resulted in visible injury to your sister's hand. After the incident, you contacted the police in Delhi through a PCR call, and a written complaint was submitted at the police station. Due to the husband's aggressive behaviour in front of the police officials, he was taken into custody. Subsequently, you took your sister to a hospital where a Medico-Legal Case (MLC) examination was conducted, confirming a hairline fracture in her hand along with other minor injuries. This medical documentation serves as crucial evidence of the assault.

In light of the continued abuse and lack of improvement over the years, you have decided that your sister will not continue residing with her husband and will relocate to her parental home in Patna for safety and support. The key concern at this stage is the appropriate jurisdiction for initiating formal legal proceedings based on the incident and the medical evidence, whether you should pursue the case in Delhi, where the incident occurred and the initial complaint was made, or in Patna, where your sister intends to reside going forward for convenience and protection.